

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**COMPLAINANTS’ MOTION FOR AN ENLARGEMENT OF TIME TO RESPOND TO
ORDER REQUIRING THE PARTIES TO SUPPLEMENT THE RECORD**

Pursuant to Rules 69, 71 and 102 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this motion (without objection of the respondents), to the Commission for an enlargement of the current due dates to respond to the Commission’s Order Requiring the Parties to Supplement The Record, which was served on May11, 2022. Specifically, complainants request an additional thirty (30) day extension of all deadlines set forth in the Order. Currently, the Order requires the parties to provide various submissions including translations of foreign language documents on or before July 11, 2022.

Complainants respectfully request that all deadlines be extended up to and including August 10, 2022.

The undersigned counsel has conferred with counsel for respondents who has noted that respondents have no objection to the instant application.

ARGUMENT

Good Cause Exists for Enlarging the July 11, 2022 Due Date for the Filing of Exceptions

The undersigned bases the instant request for an enlargement of time for filing Exceptions upon the following reasons:

1. While the undersigned had previously represented complainants together with co-counsel, Mr. Seth Katz, Esq., he has not been engaged in this matter for an extended period of time and shortly will be filing a motion to withdraw. That will leave the undersigned solely responsible for complying with the Commission's Order, which for the additional reason set forth below, warrants an extension.
2. The undersigned recently sustained an injury to the left hand which requires immobilization and which essentially leaves the undersigned typing with one hand.

RELIEF REQUESTED

It is therefore respectfully requested that the Commission issue an Order enlarging the current due dates to respond to the Commission's Order Requiring the Parties to Supplement the Record, which was served on May11, 2022. Specifically, complainants request an additional thirty (30) day extension of all deadlines set forth in the Order. Currently, the Order requires the parties to provide various submissions including translations of foreign language documents on or before July 11, 2022. Complainants respectfully request that all deadlines be extended up to and including August 10, 2022.

WHEREFORE, it is respectfully requested that Complainants' motion be granted in its entirety.

Dated: July 4, 2022
Brooklyn, New York

Respectfully Submitted,

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION FOR AN ENLARGEMENT OF TIME TO RESPOND TO ORDER REQUIRING THE PARTIES TO SUPPLEMENT THE RECORD** upon Respondents' Counsel via email (ejeffrey@nixonpeabody.com), as follows:

Jeffrey/Fenneman Law + Strategy PLLC
Attn: Eric C. Jeffrey, Esq.
700 12th St., NW Suite 700
Washington, DC 20005

Dated: July 4, 2022
Brooklyn, New York

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 201-956-7071
Fax: 347-572-0439
Attorney for Complainants